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AGREEMENT

BY AND BETWEEN

**THE BOARD OF
CLEARCREEK TOWNSHIP TRUSTEES**



AND



**CLEARCREEK PROFESSIONAL
FIREFIGHTERS LOCAL UNION # 4207**

**FIREFIGHTER / EMT'S,
FIREFIGHTER / PARAMEDICS,
LIEUTENANTS, and CAPTAINS**

FROM

JANUARY 1, 2021

THROUGH

DECEMBER 31, 2023

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ARTICLE 1

AGREEMENT

Agreement by and between Clearcreek Township, Ohio and Clearcreek Professional Firefighters Local 4207 used hereinafter in this Agreement, the term "**Employer**" and "**Township**" shall mean Clearcreek Township and the term "**Union**" shall mean Clearcreek Professional Firefighters Local 4207.

ARTICLE 2

MISSION STATEMENT AND PURPOSE

The mission of the Clearcreek Fire District is to proudly serve with compassion, integrity, and professionalism.

The purpose of this agreement is to promote and maintain a harmonious relationship between the Employer and the Union. Employer and Union leadership must commit to communication and participation. It is the trust in this process that makes this agreement and the organization successful.

ARTICLE 3

RECOGNITION

SECTION 3.1 - RECOGNITION

The Employer recognizes the Union as the sole and exclusive representative and bargaining agent for all full-time Captains, Lieutenants, Firefighters, and Paramedics excluding all other employees including, but not limited to, the Chief, the Assistant Chief(s), the Deputy Chief(s), and all part-time, seasonal and casual employees. This is the bargaining unit certified by SERB in Case No. 02-REP-11-0240.

SECTION 3.2 - MALE PRONOUN

Whenever the male pronoun or adjective is used in this Agreement, it shall be deemed to also include the female, unless otherwise indicated.

SECTION 3.3 - UNION RECOGNITION

The employer recognizes the IAFF's exclusive right to manage its affairs and the union retains and reserves unto itself all powers, rights, authority, duties and responsibilities conferred upon and vested in it by the laws and constitutions of the State of Ohio and of the united states. Further, all rights which ordinarily vest in and are exercised by employee organizations except such as are specifically relinquished herein are reserved to and remain vested in the union. The employer agrees to manage its affairs in regards to employee rights within the scope of ORC 4117 and in a manner that does not interfere, restrains or coerces employees in the exercise of their protected activities, as guaranteed by statute.

ARTICLE 4

INTEGRITY OF AGREEMENT

SECTION 4.1 - SUPERSEDES ALL PREVIOUS AGREEMENTS

The Employer and the Union agree that the terms and provisions contained in this written Agreement constitute the entire agreement between the parties and supersede all previous communications, understandings, or memorandum of understandings, pertaining to any matters set forth in this Agreement, or to any other matter. This Agreement expresses all obligations and restrictions imposed on each of the respective parties during its term.

ARTICLE 5

MANAGEMENT'S RIGHTS

SECTION 5.1 - MANAGEMENT'S RIGHTS

The Employer shall retain all of the rights, powers and authority vested in it prior to the date of this Agreement. Unless the Employer has specifically set forth in this Agreement a limitation upon the Employer's or the Chief's right or duty to manage the Fire District, the Employer shall retain all rights imposed upon it by law, to carry out the administration of the Employer and the Fire District. Except where specifically and expressly provided to the contrary in this Agreement, the provisions of the Clearcreek Township Employee Handbook and Clearcreek Fire District Policy and / or Procedures manual effective as of the signing of this Agreement, and as amended from time to time, are recognized as an appropriate exercise of the Employer's reserved rights. The sole and exclusive rights of management, which are not abridged by this Agreement, shall include (*by way of example and not by way of limitation*):

- A - The right to direct, supervise, hire, promote, demote, layoff, suspend, discipline, or discharge, for just cause; transfer, assign, schedule and retain employees terminate or otherwise relieve employees from duty for lack of work or other legitimate reason.
- B - The right to relieve employees from duty and determine the number of personnel needed in the Fire District, or to perform any function; determine the services to be rendered, the operation to be performed, utilization of technology, and overall budgetary matter.
- C - The right to purchase equipment, material or services, or to contract for services if necessary for the efficient management of the Fire District.
- D - The right to determine the appropriate job duties and personnel by which operations are to be conducted; determine the overall mission of the Fire District; maintain and approve the efficiency and effectiveness of the Fire District, and the Employer.

- E - The right to make reasonable rules to regulate the Fire District, and to establish and amend policies, procedures, general orders, special orders and guidelines and necessary rules relating to the operation of the Fire District in regard to any matter. To establish and enforce reasonable rules for the maintenance of discipline.
- F - The right to take any necessary actions to carry out the mission of the Fire District in situations of emergency; and to take whatever actions may be necessary to carry out the wishes of the public not otherwise specified. The right to hire and set the starting rate of pay within contractual salary ranges as per the contract and to determine starting and quitting time and the number of hours to be worked, including overtime, meals, breaks, rest periods and cleanup times; to determine the amount of supervision necessary, work schedules and the method and process by which work is performed. Nothing contained herein shall be construed as preventing the Employer from restructuring the normal workday or workweek for the purpose of promoting efficiency or improving services.
- G - The right to determine equipment to be used; the processes, techniques, methods and means of operations, schedules of shifts and working hours, maintain and amend occupational classifications and job descriptions and establish working rules, regulations, policies and procedures governing the conduct of the employees. To discontinue processes or operations or to discontinue their performance by employees of the Employer.
- H - The power to determine the geographical location of Employer facilities, to establish new units and relocate or eliminate existing units or facilities in part or in total.
- I - The authority to assign shifts and duties.
- J - The right to determine the methods, means and number of personnel needed to carry out Fire District responsibilities.
- K - The right to take such actions as may be necessary to carry out services as determined by the Employer or the Chief and/or his designee.
- L - The right to introduce new or improved methods, operations, equipment or facilities.
- M - The right to schedule overtime work as required.
- N - The right to determine the need for additional educational courses, training programs, and on-the-job training.
- O - To suspend, discharge or otherwise discipline employees for cause and otherwise to take such measures as Management may determine to be necessary for the orderly, efficient and profitable operation of the business, including changing or abolishing past work customs and practices.

SECTION 5.2 - MANAGEMENT'S RIGHTS

This listing of specific rights in this Agreement is not intended to be, nor shall be, restrictive of or a waiver of any of the rights of Management not listed and specifically surrendered herein, whether or not such rights have been exercised by the Employer in the past. To the extent the listed rights are specifically limited by later provisions of this agreement the alleged violations shall be subject to the grievance and arbitration procedures.

ARTICLE 6 DUES DEDUCTION

SECTION 6.1 - DUES DEDUCTION

The Employer will deduct from the wages and turn over to the appropriately designated person of the Union all periodic dues, initiation fees, and assessments of members of the exclusive representative upon presentation of a written deduction authorization by the employee; all such deductions shall be made in equal amounts during each pay period. The authorization herein above mentioned shall specifically and in writing require the employee and the International Association of Firefighters to agree to hold the Employer harmless for any payments made to the Union by the Employer during the term of the voluntary assignment.

Such dues and assessments shall be transmitted by the Employer to a representative designated in writing by the Union. Such designation shall be filed with the Clearcreek Township Fiscal Officer. Any change in designation shall immediately be made known to the Clearcreek Township Fiscal Officer in writing.

SECTION 6.2 - DUES DEDUCTION

Any amount deducted from the employee's paycheck as voluntarily authorized and provided above shall be turned over to the Union no later than thirty (30) days following such deduction. Individual authorization shall be filed with the Employer and shall continue in effect until revoked by written notice to the Employer by the employee.

ARTICLE 7

NO STRIKE AND LOCKOUTS

SECTION 7.1 - NO STRIKE AND LOCKOUTS

During the life of this Agreement, the Union will not cause, authorize, permit, participate in, or condone any strike, slowdown, sit-down, work stoppage, or other employee meetings during working hours (*except meetings called by the Employer*), or other concerted interruption or interference with the business of the Employer, including picketing of the Employer's premises. Complete or partial reduction of operations or the complete discontinuance, either temporarily or permanently, of any operation by the Employer for economic reasons shall not be considered a lockout. During the term of this agreement, the Employer shall engage in no lockout of employees covered by this agreement.

SECTION 7.2 - NO STRIKE AND LOCKOUTS

Any violation of **Section 7.1** hereof by an employee shall constitute cause for discharge of the employee or employees who participate therein.

SECTION 7.3 - NO STRIKE AND LOCKOUTS

In the event of any violations of **Section 7.1** hereof, the International Union and Local Union officers will take whatever steps are necessary to terminate said strike, slowdown, sit-down, work stoppage or other concerted activities, which interrupt operations of the Employer, or picketing in violation of this Agreement.

ARTICLE 8

NON-DISCRIMINATION

SECTION 8.1 - NON-DISCRIMINATION

Neither the Union nor the Employer shall discriminate against any employee based on age, sex, race, color, religion, disability, or national origin. The Union shall share equally with the Employer the responsibility for applying this provision to the Agreement.

There shall be no discrimination, interference, restraint, coercion, or reprisals against any employee because of Union membership, non-membership, or participation or non-participation in any lawful activity on behalf of the Union.

ARTICLE 9

SAVINGS CLAUSE

SECTION 9.1 - SAVINGS CLAUSE

Should any part hereof or any provision herein contained be rendered or declared invalid by reason of any existing or subsequently enacted legislation or by any decree of a court of competent jurisdiction, such invalidation of such part or portion of this Agreement shall not invalidate the remaining portions thereof, and the remaining parts or portions remain in full force and effect.

ARTICLE 10

PROBATIONARY PERIODS

SECTION 10.1 - PROBATIONARY PERIODS

Each new career employee shall be required to serve a probationary period of twelve (12) months from the commencement of his or her employment. The newly hired probationary employee may be discharged for any reason during the probationary period at the sole discretion of the Employer.

A newly promoted Clearcreek Township Bargaining Unit Employee shall be required to serve a probationary period of twelve (12) months from the date of promotion. A newly promoted Bargaining Unit employee may be demoted to the prior position at the discretion of the Chief for unsatisfactory performance during the promotional probationary period.

SECTION 10.2 - NO APPEAL WHILE ON PROBATION

A newly hired probationary employee may receive a verbal reprimand, written reprimand, suspension without pay, or termination any time within his probationary period and shall have no appeal through the grievance procedure.

SECTION 10.3 - EMT TO PARAMEDIC TRANSITION

An employee who is hired as a Firefighter/EMT and obtains certification as a Paramedic is not subject to additional probation beyond their original twelve (12) months. An employee who possesses a valid State of Ohio Paramedic certification after successfully completing probation will advance to Step 1 one (1) on the Fire District Salary Schedule for Firefighter/Paramedic and proceed per Article 20.2.

ARTICLE 11

LABOR/MANAGEMENT RELATIONS

SECTION 11.1 - LABOR/MANAGEMENT COMMITTEE

In the interest of sound relations between the Union and the Employer, a joint committee of the Chief and his designee(s) shall meet with not more than three representatives from the union. This committee will convene as necessary or on a more frequent basis should labor or management choose for the purpose of discussing health and safety of the employees and/or the operation, implementation or interpretation of this agreement; and to promote a more harmonious labor/management relationship. Both parties will submit to the other an agenda no later than five working days in advance, with not more than 10 agenda items. In the event an issue arises or comes to the attention of either party less than five working days prior to the meeting, either party may revise the agenda despite the general "five working day" general rule.

ARTICLE 12

SAFETY AND HEALTH

SECTION 12.1 - SAFETY AND HEALTH

The employees covered by the terms of this Agreement shall, at all times, while in the employ of the Employer, be bound by the safety, health, and reasonable work rules and regulations established by the Employer which the Employer expressly reserves the right to change at its discretion. It is the policy of the Clearcreek Fire District to conduct all operations in a manner that provides the highest level of safety and health for all employees. The prevention of accidents, injuries and occupational illnesses is a primary goal of the Fire District and all personnel shall cooperate, participate, and conduct their activities accordingly. This concern for safety and health encompasses all personnel involved in any type of Fire District activity. Safety concerns may be addressed during the labor/management process established **ARTICLE 11**.

ARTICLE 13

UNION BUSINESS

SECTION 13.1 - UNION REPRESENTATIVES

An IAFF or OAPFF representative may consult with members of the bargaining unit and be admitted to the Employer's facilities at all reasonable times upon prior notification to the Chief or his designee.

SECTION 13.2 - UNION EXECUTIVE BOARD

The Union Executive Board consists of the President, Vice-President, Secretary/Treasurer, and Trustees. The names of these individual's shall be furnished to

the Employer Administrator and Chief. This list shall be kept current by the Union at all times.

SECTION 13.3 - UNION PRESIDENT

The highest ranking Union official in the bargaining unit shall be designated as the Union President. Union business shall be conducted through the Union President unless otherwise specified. The Union President's functions shall consist of:

- (a) attendance at Labor-Management meetings;
- (b) assisting the Union in processing and investigating grievances.*

* *The President shall be granted reasonable time to investigate and process formal grievances on the employers property with no loss of pay, if conducted during his regular working hours and provided that such time is required and approved in advance by the Chief. Nothing herein shall be construed to permit the President or any other union official to be relieved from their obligation to respond to calls for service.*

SECTION 13.4 - RIGHT TO REPRESENTATION

The Employer will comply with all legal requirements for the right to representation.

SECTION 13.5 - UNION MEETINGS

The Employer agrees to allow the Union to conduct its business meetings in the evenings, in Employer facilities, provided the appropriate facilities have not previously been reserved for other purposes and have been properly reserved by the union. Also, management shall allow the union to hold an emergency union meeting shall the need arise, provided the appropriate facilities have not previously been reserved for other purposes and are properly requested by the union. The union president or his designee shall submit a request in writing to the Chief or his designee. On-duty members will be allowed to attend such meetings, provided that attendance does not interfere with the efficiency and operation of the Fire District.

SECTION 13.6 - BULLETIN BOARDS

The Employer agrees to provide bulletin board space in an agreed upon area at all stations for use by the Union. Postings shall be confined to matters of Union concerns; no material shall be posted which is deemed by the Employer to be negative, derogatory, sexually explicit or unfavorable to the Employer in any way.

SECTION 13.7 - BARGAINING COMMITTEE

A bargaining committee not to exceed three (3) members shall be permitted to attend negotiations during the term of the Agreement on a no loss, no gain basis.

SECTION 13.8 - NO WORKING TIME

No employee who conducts any union business outside regularly scheduled hours shall be compensated.

ARTICLE 14

ALCOHOL AND DRUG TESTING POLICY

SECTION 14.1 - PROHIBITED ACTIVITIES

All Employees are subject to this Article. All employees covered by this Article are prohibited from engaging in the following:

1. Reporting to duty, remaining on duty, or performing any function while having any alcohol concentration;
2. Reporting to duty, remaining on duty, or performing any function while using a controlled substance (*including prescription drugs, unless the physician has advised the employee that the substance does not adversely affect the employee's ability to function*) or if the employee tests positive for controlled substances;
3. Possessing alcohol while on duty;
4. Using alcohol or controlled substances while on duty;
5. Performing any functions within eight (8) hours after using alcohol;
6. Using alcohol for eight (8) hours following an accident in which the employee is required to take a post-accident alcohol test or until the employee undergoes a post-accident alcohol test, whichever occurs first;
7. Refusing to submit to a post-accident, random, reasonable suspicion or follow-up alcohol or controlled substance test.

SECTION 14.2 - CONSEQUENCES

If an employee violates any of the prohibitions listed in **Section 14.1** of this Article, the following consequences will result:

1. The employee may be disciplined for any acts committed while under the influence of alcohol or a controlled substance in accordance with the disciplinary Article of this contract. An employee who tests positive will be given an opportunity to participate in a rehabilitation program. An employee shall be permitted only one (1) chance at rehabilitation. Disciplinary conferences should be held within three (3) days of the notification of an alleged violation, when possible.

If the employee is not terminated, the employee may be required to apply for accumulated sick leave, vacation, personal leave, and compensatory time, and Family and Medical Leave, if applicable, to cover any period of absence. If the employee does not have sufficient paid leave to cover the period of absence, the employee must request unpaid leave in accordance with Employer policy.

2. The employee shall be immediately removed (*taken out of service*) from any Employer function. Such removal is in accordance with federal

regulations, and therefore not subject to any grievance procedure the Employer follows.

At the Employer's discretion, an employee may be permitted to perform non-safety sensitive functions, if the Employer determines that such a position is available. If no such non-safety sensitive position is available, and no paid leave is available, the employee can request an unpaid leave of absence (*e.g. Family and Medical Leave, disability leave, or other unpaid leave of absence*).

3. The employee shall be provided with information regarding the services available for alcohol and substance abuse.
4. The employee shall be evaluated by a substance abuse professional (*SAP*) and may not perform any functions until all recommended counseling and treatment is completed. These actions are in accordance with federal regulation, and therefore not subject to any grievance procedure the Employer follows. If the *SAP* does not recommend any treatment or counseling, then there shall be no further discipline under this policy unless other provisions of this policy are violated or the employee has a blood alcohol level greater than 0.04.

Failure to complete or participate in prescribed counseling rehabilitation program shall result in the employee's termination. Any costs associated with the prescribed counseling, treatment, or rehabilitation program are the responsibility of the employee, unless otherwise covered by the Employer-sponsored medical benefit plan to which the employee participates.

5. The employee will be subject to re-evaluation, return-to-duty testing and unannounced follow-up tests for twelve (12) months following the member's return to duty. These actions are in accordance with federal regulations, and therefore not subject to any grievance procedure the Employer follows.

SECTION 14.3 - REPORTING THE USE OF PRESCRIPTION/NON-PRESCRIPTION MEDICINE

An employee is required to report the use of any prescription or non-prescription medicines containing alcohol or any of the prohibited controlled substances listed in **Section 14.5**, below, to his supervisor. At the time the medication is prescribed, the employee shall inquire as to whether the medication will impair the employee's ability to perform any functions. The employee shall be required to produce a signed statement from the treating physician that any prescribed medication containing alcohol or a controlled substance (*as defined in Section 14.5*) does not impair the employee's ability to perform any functions and/or does not interfere with the safe performance of the employee's job.

If the treating physician determines that the medication will impair the employee's ability to perform his functions, the employee will be permitted to use accumulated sick leave, vacation, personal leave, compensatory time, or unpaid leave to cover the period of

absence. The employee may also be required to follow the Employer's FMLA policy and procedures, if applicable, if the absence qualifies.

SECTION 14.4 - REQUIRED TESTING

An employee will be required to submit to testing for alcohol and/or controlled substances under the following circumstances:

1. **Pre-Employment Testing:** Prior to the first time an employee performs any Employer function, the employee will be tested for controlled substances. The employee will not be permitted to perform any functions unless the controlled substance test results are negative.

The Employer shall arrange the time and location for the pre-employment test. The applicant is responsible for reporting to the collection site for the test. The Employer will be responsible for only the cost of the test itself. All other costs incurred by the applicant concerning a pre-employment test are entirely the applicant's responsibility.

2. **Post-Accident Testing:** As soon as practicable following: (a) an employee who suffers or causes an employee to suffer a service-connected injury or illness incurred in the course of and arising out of employment with the Employer, (b) an accident in which a fatality occurs, (c) an accident in which an injury is treated away from the scene and the employee receives a citation for a moving violation arising from the accident, (d) an accident in which a vehicle is required to be towed from the scene and the employee receives a citation for a moving violation arising from the accident, or (e) when an employee causes a vehicle accident; the employee shall be tested for alcohol and controlled substances. The Employer shall cease attempts to administer the test eight

(8) hours following the accident for alcohol and after thirty-two (32) hours for controlled substances.

The employee shall be transported to the collection site by a representative of the Employer. Following the test, the employee shall be transported home and the employee will not be permitted to perform any functions until a negative controlled substance test result is reported.

Following a breath alcohol test which shows no detectable amount of alcohol, the employee will be permitted to apply for accumulated sick leave, vacation, personal leave, compensatory time, or unpaid leave to cover the period of absence until the controlled substance test results are available. If the controlled substance test results are negative, the employee will be credited for the used paid leave, or compensated for the period of leave without pay at the employee's regular hourly rate of pay, unless other work rule violation(s) have occurred.

Following a breath alcohol test, which shows any detectable level of alcohol, the employee will be taken home and permitted to apply for accumulated paid leave. The employee may not perform any functions for a minimum of twenty-four (24) hours. An employee with a breath alcohol test of less than 0.04 shall also be subject to appropriate disciplinary

measures in accordance with the Employer's Drug Free Workplace Policy or other applicable policies.

Following a breath alcohol test result indicating any concentration, or following a positive controlled substance or illegal drug test result, if the employee's employment is not terminated, the employee may request the use of accumulated sick leave, vacation, personal leave, compensatory time, or unpaid leave and the consequences listed in **Section 14.2** above will result.

3. **Random Testing:** A minimum number of employees (*currently 10 % for alcohol and 50% for controlled substances*) annually will be randomly selected using a scientifically valid method in which each employee will have an equal chance of being tested each time selections are made. The dates for testing shall be unannounced and spread throughout the calendar year. When an employee is selected for testing, he shall cease doing their function and proceed to the test site immediately. If an employee is randomly selected for an alcohol test and that employee is not currently performing, just about to perform, or just finished performing their Employer function, the employee's selection may be kept confidential until the next time that employee performs an Employer function.

Following a breath alcohol test, which shows any detectable level of alcohol, the employee will be taken home and permitted to apply for accumulated paid leave. The employee may not perform any functions for a minimum of twenty-four (24) hours. An employee with a breath alcohol test of less than 0.04 shall also be subject to appropriate disciplinary measures in accordance with the Employer's Drug Free Work-place Policy or other applicable policies.

Following a breath alcohol test result indicating any concentration or following a positive controlled substance test result, if the employee's employment is not terminated, the employee may request the use of accumulated sick leave, vacation, personal leave, compensatory time, or unpaid leave and the consequences listed in **Section 14.2** above will result.

4. **Reasonable Suspicion Testing:** A trained supervisor or official may require an employee to undergo testing for alcohol or controlled substances based upon specific, contemporaneous, articulable observations concerning the appearance, behavior, speech, or body odors of the employee. If an employee is required to undergo testing under this section, the employee must immediately cease to perform their Employer function and he will be transported to the collection site by a representative of the Employer. If an employee is required to undergo reasonable suspicion controlled substance testing, such employee shall not be permitted to perform any Employer functions until a negative controlled substance test result is reported.

Following a reasonable suspicion controlled substance test, the employee will be permitted to apply for accumulated sick leave, vacation, personal leave, compensatory time, or unpaid leave until the test results are available. If the controlled substance test results are negative and no other

work rule violation(s) have occurred, the employee shall be returned to his position and credited for his entire used paid leave or compensated for the period of leave without pay at the employee's regular hourly rate of pay.

Following a breath alcohol test, which shows any detectable level of alcohol, the employee will be taken home and permitted to apply for accumulated paid leave. The employee may not perform any Employer functions for a minimum of twenty-four (24) hours. An employee with a breath alcohol test of less than 0.04 shall also be subject to appropriate disciplinary measures in accordance with the Employer's Drug Free Workplace Policy or other applicable policies.

Following a breath alcohol test result indicating any concentration or following a positive controlled substance test result, if the employee's employment is not terminated, the employee may request the use of accumulated sick leave, vacation, personal leave, compensatory time, or unpaid leave and the consequences listed in **Section 14.2** above will result.

The Employer will cease attempts to administer the test eight (8) hours after the observation was made.

5. **Return-To-Duty Testing:** Before an employee who has been found to be in violation of the prohibitions section of this Article, set out in **Section 14.1**, may return to duty in a position requiring the performance of any functions, the employee must undergo testing for alcohol and/or controlled substances. The results of the alcohol test must show no concentration if the offense involved alcohol and the controlled substance test must be negative if the offense involved controlled substances. Any costs associated with this test will be the responsibility of the employee at the time the test is administered.
6. **Follow-Up Testing:** When an employee has been found to be in violation of the prohibitions section of this Article, set out in **Section 14.1**, and the substance abuse professional has determined that the employee needs assistance in resolving alcohol or substance abuse problems, the employee will be subject to a minimum of two (2) unannounced follow-up tests within the first twelve (12) months as directed by the substance abuse professional. Any costs associated with this test will be the responsibility of the employee at the time the test is administered.

SECTION 14.5 - CONTROLLED SUBSTANCES

Controlled substances for the purpose of this Article shall include all legal, illegal and prescription drugs containing marijuana, cocaine, opiates (*e.g. codeine, morphine, etc.*), PCP, and amphetamines. All drug screening and confirmation tests shall be conducted by a laboratory certified under the DHHS "Mandatory Guidelines for Federal Workplace Drug Testing Programs". The Employer and the laboratory shall have a clear and well-documented procedure for collection, shipment, and accessing of urine specimens. The Employer, the collection site, and the laboratory shall follow the procedures in 49 CFR Part 40, including an evidentiary chain of custody and control and split sample collection and testing.

The collection site person is responsible for maintaining the integrity of the specimen collection and transfer process. All procedures shall be outlined in writing and provided to Employer representatives and donors. A separate sample will be made available for the employee being tested. The member may request that the sample be sent to a neutral laboratory certified under DHHS for testing. The cost of this test will be borne by the bargaining unit member.

SECTION 14.6 - TRAINED TECHNICIAN

A trained breath alcohol technician (*BAT*) shall administer all alcohol breath tests or a law enforcement officer certified to conduct such tests. Only evidential breath testing (*BET*) devices shall be used along with the prescribed breath alcohol testing form. The Employer and the testing facility shall follow the procedures in 49 CFR Part 40.

SECTION 14.7 - REFUSAL TO SUBMIT

Refusal to submit to any of the alcohol or controlled substance tests required by this Article will result in the employee's immediate removal from the any Employer functions and may result in disciplinary action. Refusal will be treated as a positive test and the employee will be referred to a counseling program and subject to return-to-duty and follow-up testing. Actions constituting a refusal to submit to a test include:

1. Failing to provide adequate breath for alcohol testing;
2. Failing to provide adequate urine for controlled substance testing;
3. Engaging in conduct that clearly obstructs the testing procedure;
4. Failing to remain readily available for a post-accident test.

SECTION 14.8 - ZERO TOLERANCE

Employees who have been tested for alcohol with the results showing any concentration will not be permitted to perform any functions for twenty-four (24) hours following administration of the test. Discipline may be administered in accordance with the Employer's Drug Free Workplace Act Policy or in accordance with any labor agreement between the parties and/or other disciplinary policies.

SECTION 14.9 - CALL OUTS

Where applicable, employees who are on call are responsible for informing the Employer when the employee is called if he is unable to report due to alcohol consumption. The Employer will, whenever possible, notify employees of the likelihood of a call out situation.

SECTION 14.10 - EMPLOYEE ASSISTANCE PROGRAM

Information regarding the effects of alcohol and controlled substance use on an individual's health, work, and personal life, and information about drug and alcohol counseling, rehabilitation, and employee assistance programs is available through the Assistant Administrator's Office or the Chief's Office, and will be periodically provided to employees.

Employees are encouraged to voluntarily admit problems with drugs and alcohol prior to violating Employer policies. If an employee voluntarily enters into counseling or rehabilitation he will be permitted to apply for an unpaid leave, personal leave, or other leave of absence. The employee may also be permitted or required to use all available sick leave, vacation, personal leave, compensatory time, and Family and Medical Leave, if applicable. Any costs associated with a voluntary counseling or rehabilitation program are the responsibility of the employee, unless otherwise covered by the Employer- sponsored medical benefit plan to which the employee participates.

SECTION 14.11 - OBTAINING EMPLOYEES RECORDS

Upon written request from the employee, the Employer will promptly provide copies of any records pertaining to the employee's use of alcohol or controlled substances including the results of any tests. The Employer may charge a reasonable fee for copies. However, access to this information will not be contingent upon payment for records other than those specifically requested.

SECTION 14.12 - COMPLIANCE TO ALL OTHER REGULATIONS

All bargaining unit employees are subject to this Article and remain subject to all other policies, procedures, rules, regulations, and collective bargaining agreements established by the Employer under its independent authority, which are not inconsistent with the requirements herein. All employees also remain subject to all other relevant federal, state, and local laws and regulations.

ARTICLE 15

PHYSICAL FITNESS AND WELLNESS

SECTION 15.1 - ROUTINE PHYSICAL EXAMINATIONS

Regular employees may have a minimum of one physical examination biennially until the age of forty-five (45) and annually thereafter. The township shall pay the cost of such examinations. These examinations shall be performed by a qualified physician which shall be designated by the township. These examinations shall be for the purpose of determining the employee's ability to perform his duties with average efficiency. These physicals will be scheduled by the employee, off duty, in the month of their birthday.

SECTION 15.2 - ADDITIONAL EXAMINATIONS

Employees returning from disability or sick leave shall be subject to physical performance, fitness and/or medical examinations appropriate to the employee's duties. These additional physical examinations and supplemental medical evaluations may be ordered by the Chief or the Township Administrator and paid for by the township. If the employee chooses to select his own physician for the physical examination, the fee shall be paid by the employee and the medical report will be submitted to the physician chosen by the township to make an evaluation of the employee's condition and overall fitness. However, the Chief or the Township Administrator reserves the right to require additional physical examinations at the township's expense. These examinations shall be

for the purpose of determining the employee's ability to perform his duties with average efficiency.

SECTION 15.3 - CORRECTIVE MEASURES

In requiring a physical examination or medical evaluation, the Chief shall request that the examining physician recommend measures be taken by the employee to correct or improve any health or physical condition which impairs the employee in the performance of his assigned duty. The Chief may direct the employee to follow such corrective measures within the time frame recommended by the physician and order follow-up examinations. Failure to follow corrective measure shall be grounds for disciplinary action up to and including termination.

SECTION 15.4 - WELLNESS PROGRAM

To ensure the fitness and wellness of all employees, the employees are eligible to participate in a wellness program at The Helen & Charles Coffman Family YMCA in Springboro, Ohio. The Employer will participate in the YMCA of Metropolitan Dayton Corporate Membership Program. This would entitle employees to become members at a discounted rate. The employee may, by payroll deduction, have his membership fee deducted from his paycheck. It is the intent of this program to enhance aerobic capacity, improve strength and/or flexibility, non-passively improve ability to perform strenuous work and actively assist the employee in reducing body fat to assist in any compliance with **Section 15.1**.

SECTION 15.5 - USE OF TOBACCO

Employee shall not use any type of tobacco products on duty. Employees shall not use any type of non-tobacco products which are smoked or any form of electronic cigarette while on duty.

ARTICLE 16

SENIORITY

SECTION 16.1 - SENIORITY

Seniority shall be defined as the length of continuous, permanent, full time employee's date of first service with the Clearcreek Fire District. Seniority shall not be available to employees during their probationary period, but shall be retroactive to the date of service upon successful completion of the probationary period. Seniority shall be lost when an employee:

- 1 - Resigns;
- 2 - Is discharged;
- 3 - Is laid off and not recalled within one (1) calendar year;
- 4 - Is off the payroll for any reason whatsoever, except military leave, for one (1) calendar year; or
- 5 - Is laid off by the Employer for a period of their Employer Seniority or one (1) calendar year, whichever period is less.

SECTION 16.2 - SENIORITY

For purposes of vacation picks, seniority within rank will be based upon date of promotion.

ARTICLE 17

LAYOFFS AND RECALL

SECTION 17.1 - LAYOFF

Layoff of employees shall be made in the inverse order of the date when an employee first entered into full time service with the Clearcreek Fire District. If it is found that two or more employees have the same starting date, then layoff order for the employees involved shall be determined by an established seniority list. A current list will be maintained by fire administration and posted at fire headquarters.

BUMPING RIGHTS FOR LAYOFF

The Township reserves the right to determine the number of personnel required at each rank or classification within the fire district. Layoff may occur based on rank or classification, as determined by the Township.

If an employee has no opportunity to bump within the same class or rank, then such employee shall have bumping rights within his department against the least senior full-time employee holding a position in the next lower rank or class. If no bumping opportunity is afforded, the same right shall extend to the next and each lower rank or class until the lower ranks or classes are exhausted.

SECTION 17.2 - RECALL

The Employer shall establish a recall list for each classification in which a layoff has occurred. The list shall consist of the names of laid off employees in the inverse order of their layoff, with the most recently laid off person at the top of the list. Should the Employer desire to fill a position within the Fire District in a classification to which a recall line exists, that position shall be first offered to qualified person on the list in the inverse order of layoff, with the most recently laid off person receiving the offer first. The position must be offered to every qualified person on the list in accordance with seniority before a new employee is hired. At the time the recall is announced, all laid off firefighters on the recall list will be notified by regular mail at their last known address and instructed to notify the Employer of their availability within seven (7) days of the post date of the notice.

SECTION 17.3 - RECALL RIGHTS

Employees shall have recall rights for one (1) year from the date of layoff or for the length of seniority, which ever is less. An employee who declines a recall offer may be removed from the recall list. An employee who is on lay-off for a period of twelve (12) months is automatically terminated and loses all seniority and eligibility for benefits except as required by law.

ARTICLE 18

DISCIPLINE

SECTION 18.1 - DISCIPLINE

No regular employee who has completed probation may be disciplined or discharged except for just cause and/or for violation of the Fire District and/or Employer guidelines, rules, regulations, policies, and procedures. Probationary employees may be disciplined or discharged at the discretion of the Employer. Where it is appropriate, steps of discipline are verbal counsel, verbal reprimand, written reprimand, paid or unpaid administrative leave, suspension, and dismissal. Some or all of these steps may be eliminated where it is appropriate or where the guidelines/rules call for it. Other types of discipline, such as demotion, may also be involved where they are appropriate.

All disciplinary action will be in accordance with Fire District and/or Employer guidelines, rules, regulations, policies, and procedures that are not in conflict with this agreement.

SECTION 18.2 – DISCIPLINARY PROCESS

The Chief shall approve all discipline regardless of the level. The Chief may designate another member of management to act on behalf of the Chief during the discipline process. Accordingly, the “Chief” shall be read to include “or the Chief’s designee” throughout this Article. The exclusive means of appeal of a suspension or dismissal shall be the grievance procedure set forth in Article 19, and shall begin at Step 4.

When the Employer commences a disciplinary action that may result in a suspension of three (3) or more work days or dismissal, the following process shall be utilized:

(1) Pre-disciplinary Hearing.

A pre-disciplinary hearing shall be scheduled to determine the merit of the allegations against the employee. The pre-disciplinary hearing will be conducted by the Chief. The Chief shall begin the pre-disciplinary hearing by informing the employee of the charges against him. The pre-disciplinary hearing is not intended as an evidentiary hearing but only as an opportunity for the employee to present his side of the facts and to prevent mistaken initial determinations of the employee’s misconduct. The employee has the right to appear in person at the pre-disciplinary hearing and to be represented by counsel and / or a union representative, provided, however, that the employee’s counsel and / or union representative shall not hinder the finding of facts in any way. The Chief shall set a date for the pre-disciplinary hearing within twenty-one (21) business days of the employee being served with formal charges or being placed on unpaid leave. All time limits on the grievance procedure will be held in abeyance pending the conclusion of this procedure. Any time prior to the pre-disciplinary hearing, the employee may elect in writing to waive his opportunity to have a pre-disciplinary hearing.

(2) Disciplinary Hearing.

The Chief shall schedule a disciplinary hearing to occur no later than twenty-one (21) business days following the conclusion of the pre-disciplinary hearing. At the disciplinary hearing, the employee has the right to (1) appear in person and be represented by legal counsel or a union representative of the employee's choosing, (2) examine any witnesses which may be presented against the employee, (3) present any witnesses or documents which the employee may choose in their defense, and (4) answer all charges against them. The employee must provide a list of witnesses that the employee intends to call and submit all documents that the employee intends to introduce no later than seven (7) business days before the disciplinary hearing. The Chief may issue discipline, up to and including termination, at the conclusion of the disciplinary hearing or within seven (7) business days.

During the disciplinary process established in this Section, the Chief may, at his discretion, place the employee who is subject to potential discipline on administrative leave, with or without pay, until the conclusion of the disciplinary process.

SECTION 18.3 - TIME LIMITS

The time limits imposed in this Article may be extended at any step by mutual written consent of the parties in that step.

ARTICLE 19 GRIEVANCE PROCEDURE

SECTION 19.1 - DEFINITION AND STEPS

DEFINITION - A grievance is defined as an allegation that the terms of this written Agreement have been violated. Resolution of grievances shall be pursued in accordance with the following steps:

STEP 1

An employee who has a grievance may discuss the grievance with his immediate supervisor if an oral discussion may be conducive to resolving the matter. An oral discussion will, however, not relieve the employee from the obligation of filing a written grievance within the time period set forth herein. A grievance shall be reduced to writing and set forth the details of the grievance (*i.e., the facts upon which it is based, the approximate time of the occurrence, the relief or remedy requested*), and shall be submitted to the immediate supervisor within ten (10) business days after the grievance. The day following the date of the occurrence shall be considered the first day of the ten

(10) business day period. The immediate supervisor should give his response in writing to the Grievant within ten (10) business days after the grievance was presented to him.

STEP 2

If the grievance is not resolved at **STEP 1** to the satisfaction of the Grievant, it shall be presented by the Grievant to the Assistant Fire Chief or his designee within ten (10) business days of the decision of the immediate supervisor. The Assistant Fire Chief or his designee should respond in writing within ten (10) business days of the date of the receipt of the grievance.

STEP 3

If the grievance is not resolved at **STEP 2** to the satisfaction of the Grievant, it shall be presented by the Grievant to the Chief or his designee within ten (10) business days of the decision of the Assistant Fire Chief. The Chief or his designee, should respond in writing within ten (10) business days of the date of the receipt of the grievance.

STEP 4

Should the Grievant after receiving the written response to their grievance at **STEP 3** of this procedure still feel that the grievance has not been resolved satisfactorily; the Grievant may appeal in writing within ten (10) business days to the Township Administrator. The Township Administrator shall respond in writing within ten (10) business days of receipt of the grievance.

STEP 5

Should an employee/grievant, after receiving the written response to his grievance at **STEP 4** of the Grievance Procedure still feel that the grievance has not been resolved to his satisfaction he may, through the Clearcreek Professional Firefighters, request that it be heard by an Arbitrator. The Clearcreek Professional Firefighters shall make application to the Trustees or designee for arbitration within ten (10) business days of receipt of the written response from **STEP 4**. Within ten (10) business days following the Trustees receipt of the Clearcreek Professional Firefighters application for arbitration, the Trustees and the Clearcreek Professional Firefighters representative or his designee will attempt to select an impartial arbitrator by mutual agreement. If no agreement is reached, a joint letter will be issued requesting the Federal Mediation and Conciliation Service to provide a list of arbitrators. Upon receipt of such list, the Clearcreek Professional Firefighters and the Trustees shall alternately cross off one name until one name remains, that person being selected as Arbitrator. A date will be set as soon as possible in accordance with the wishes of the Trustees, the Clearcreek Professional Firefighters, and the availability of the Arbitrator.

SECTION 19.2 - ARBITRATION

The decision of the Arbitrator shall be binding on all parties. The Township Trustees and the Clearcreek Professional Firefighters agrees the loser will pay for the cost of the arbitration. Any party producing the same shall pay the expense of the expert witness. The employee filing the grievance shall have the right to have representation of legal counsel or the Clearcreek Professional Firefighters at any time after **STEP 2** of the Grievance Procedure.

SECTION 19.3 - TIME LIMITS

The time limits imposed in this Article may be extended at any step by mutual written consent of the parties in that step.

SECTION 19.4 - CLASS ACTION

In any grievance filed by a class of employees, that class shall select one employee to represent it.

SECTION 19.5 - WAIVER OF TIME LIMITS

The time limit set forth in this grievance procedure may be waived by mutual agreement of the parties in writing. Unless such time restrictions are waived, they shall be strictly applied. The burden of complying with the time restrictions falls upon the grievant and the Union pursuing the grievance. Failure by the grievant to comply with the time limits set forth in this procedure shall result in the termination of the grievance. The events or acts of the Employer giving rise to the grievance shall be deemed to have been within the proper authority of the Employer, and not in violation of the terms of this Agreement. Failure on the part of any supervisor, the Chief or his designee, the Township Administrator, or the Trustees or their designee, to respond within the time limits set forth in this Agreement, shall be the equivalent of a denial of the grievance, and shall not be construed as a default or a granting of the relief requested.

SECTION 19.6 - EXCLUSIVE REPRESENTATION

All grievances shall be brought exclusively through the union by its designated representative. Any grievance filed shall have at least two (2) signatures; that of the president and the other of either the vice-president, secretary or trustees of the bargaining unit. The employees covered hereunder shall be bound by any decision, determinations, agreements, or settlements which may be effectuated pursuant to invoking the grievance-arbitration procedure including any determinations as to the merits or arbitrability of a grievance, as shall be made by the authorized representative who is an employee covered by this Agreement handling the grievance, provided however, that such determinations regarding arbitrability or merits shall be made upon the facts with which the authorized representative is confronted.

SECTION 19.7 - GRIEVANCE AND/OR COMPLAINT RESOLUTION

This Agreement is to be used exclusively in the resolution of a grievance or complaint in lieu of the Township Complaint Resolution Procedure described in the Employee Handbook.

SECTION 19.8 – SUPERVISOR NO RESPONSE

If a supervisor fails to respond during the timelines set forth in this agreement, the requested grievance resolution is considered denied and the employee can move forward to the next step.

ARTICLE 20

WAGES

SECTION 20.1 - WAGE RATES

Bargaining unit members shall be compensated as provided for in Appendix A. The salaries listed in Appendix A are based on twenty-four (24) hours on and forty-eight (48) hours off shift schedule of 2704 hours per year. 2704 shall be divided by twenty-six (26), the standard number of pay cycles in a calendar year, to determine the bi-weekly pay amount. All regularly-scheduled work hours, not including Kelly Days shall count toward the 2704. Kelly Days and built-in overtime shall be paid throughout the calendar year. Ten (10) hours of pay will be added to each pay to account for Kelly Days and built in overtime. This article is not intended to affect hours worked outside of the bargaining unit members' regularly scheduled hours.

A bargaining unit members annual salary is calculated by multiplying the employees hourly rate by their base pay (2704 hours), holiday pay (spread out over 26 pay cycles), and 260, as defined above.

Bargaining unit members assigned to a forty (40) hour work week shall be compensated as provided in Appendix A. The salaries listed in Appendix A shall be divided by 2080 (the standard work hours in a year for administrative employees). 2080 hours shall be divided by twenty-six (26), the standard number of pay cycles in a calendar year, to determine the amount paid bi-weekly.

SECTION 20.2 - ANNUAL INCREASES

Contractual increases will take effect the first pay period following January 1st of each contract year; step increases will take effect the first pay period following the employee reaching his anniversary date, and will then take effect the first pay period following January 1st of each contract year. All step increases will be subject to the bargaining unit member receiving at least a "Meets Expectations" on the cumulative score of his annual evaluation. If an employee fails to receive the required cumulative score, then the employee will not be eligible for the step increase until the following January, providing the employee meets the required cumulative score on the next evaluation.

ARTICLE 21

HOURS OF WORK

SECTION 21.1 - HOURS OF WORK

Bargaining unit members will be assigned to either a twenty-four (24) hours on and forty-eight (48) hours off shift schedule or a forty (40) hour work week. Employees assigned to 24/48 shift can be temporarily assigned to a 40 hour schedule for temporary training assignments, transitional work, or other reason determined by the Fire Chief with no loss, no gain in pay or benefits.

The Township agrees to compensate bargaining unit members at a rate of one-and-one-half the bargaining unit members' straight time hourly rate for those hours actually worked outside of the bargaining unit members' normally scheduled hours of work. For this Article, time spent on vacation leave, personal leave, sick leave, injury leave, bereavement leave, Kelly Days, and all other leaves will not count as hours worked for the purpose of the payment of overtime.

SECTION 21.2 – KELLY DAYS

Bargaining unit members assigned to a twenty-four (24) hours on and forty-eight (48) hours off shift schedule shall be assigned a Kelly Day. Kelly Days will fall on the same day of the week, every six (6) weeks and shall not be traded. Kelly Days will be selected by members in order of rank then seniority. Kelly Days for Captains shall be Tuesday, Wednesday, or Thursday. Kelly Days for Lieutenants shall be Monday, Tuesday, Wednesday, Thursday, or Friday. An attempt will be made to evenly distributed Kelly Days throughout every day of the week. In the event a Kelly Day is vacated, that day can be bid on based on the criteria stated above and will take effect the following January. Kelly Days will be re-selected before January of the final year of this agreement to take effect the following contract cycle.

SECTION 21.3 – MANDATORY TRAINING ON KELLY DAYS

Employees who attend mandatory training on a Kelly Day shall be paid half-time on top of their regular hourly rate for actual hours spent at training on the Kelly Day.

ARTICLE 22

OVERTIME

SECTION 22.1 - OVERTIME

Overtime shall be paid in accordance with the Fair Labor Standards Act. It is understood and agreed by the parties that when the Employer has determined that the operational needs of the department require overtime, any or all employees may be required to work overtime.

SECTION 22.2 - DISTRIBUTION OF OVERTIME HOURS

After exhausting all resources and it is determined that overtime is necessary, overtime will be offered to bargaining unit members using the following system:

The Fire District will maintain an overtime notification list for each employee. The lists will be established by classification for the following: Firefighter/ Paramedic or EMT, Lieutenant, and Captain. Each January 1st, the list will reset with the most senior Fire District employee by current rank, listing all other employees in succession by their seniority, and ending with the least senior employee in that rank.

1. The Fire District will determine the need for overtime as soon as possible and begin the notification process to fill the overtime in question as soon as possible.
2. All eligible employees in a classification will be notified electronically of

available overtime. Employees will have at least fifteen (15) minutes to respond regarding their interest in accepting the overtime. It is the employees responsibility to make sure their contact information is kept up to date.

3. The person responsible for filling the overtime will keep a log of all personnel who respond and are interested in accepting the overtime. The employee who responds that is highest on the list will be awarded the overtime, and will be notified of this and asked to call back and confirm the award. The person that is awarded the overtime will move to the bottom of the list.
4. The person responsible for filling the overtime will update the list accordingly, and will duly note if the employee was ordered-in.
5. Except in an emergency situation, employees on the following leave will be considered ineligible to be ordered in: FMLA, sick leave, bereavement leave, disciplinary suspension, Kelly Day, personal leave, scheduled vacation, and trades.
6. Leave ineligibilities begin immediately at the end of the employee's regularly scheduled shift, and end upon the employee's return to duty on their next regularly scheduled shift.
7. Employees on sick leave immediately prior to the overtime may not voluntarily accept, or be ordered-in for overtime, until they have worked their next regularly scheduled shift.
8. Scheduled overtime will generally be offered in 12-hour increments, with a maximum of 48 consecutive hours worked by an employee.
9. If overtime is accepted but is later canceled by the employer, the employee will be placed back to their original place on the list.
10. If an employee accepts an overtime assignment of less than 6 hours, it will not affect the employee's position on the list.

Use of the list, while desirable in all circumstances, is not required when there is less than nine (9) hours' notice of the need for the overtime assignment. The nine (9) hour time frame shall not be used as a means to avoid using voluntary overtime lists. In these situations overtime may be offered electronically or through any appropriate means. Employees may work overtime outside their current rank if overtime becomes available inside the nine (9) hour window.

In the event the position cannot be filled on a voluntary basis using the overtime list, the lowest seniority person with appropriate qualifications will be required to fill the position. Mandatory overtime will be rotated in a reverse seniority order, starting with the least senior member in each classification. The mandatory overtime list will reset every January 1st. When appropriate, an overtime vacancy may be filled with someone from another classification prior to using mandatory overtime. In the event of an emergency situation, the employer may require all employees to work as required.

SECTION 22.3 - QUALIFICATIONS

When the Employer determines that overtime is necessary and special qualifications are required, the award of overtime may be offered to the first member on the list that meets the necessary qualifications.

ARTICLE 23 ARTICLE REMOVED

ARTICLE 24 CALL BACK AND CALL-IN PAY

SECTION 24.1 - REPORTING PAY

An employee who reports to work at a scheduled starting time, who is sent home early, shall receive a minimum of two (2) hours pay at the applicable straight or overtime rate, depending on the circumstances.

SECTION 24.2 - CALL BACK

Any employee called back for work outside his regularly scheduled hours for a departmental alarm shall be paid for actual hours worked at the applicable rate of pay. Employees called back for office meetings, legal appearances, special inspections and teaching, training assignments, and "recall" for major incidents, shall be paid for a minimum of two (2) hours at the applicable rate.

ARTICLE 25 PERSONAL DAYS

SECTION 25.1 - PERSONAL DAYS

Each employee shall be credited with two (2) personal leave days per year. Personal leave days shall not be deducted from earned sick leave. Personal leave days must be taken as one full day of leave. Employees must schedule and use personal day leave on or before December 31st of each calendar year. A personal day not scheduled and used on or before December 31st will be dropped. A third personal day may be used in the calendar year and will be deducted from the employee's sick leave hours. Employees can bump another employee's personal day based on seniority up to one hundred twenty (120) days prior to the requested day.

ARTICLE 26

SICK LEAVE

SECTION 26.1 - NOTIFICATION

An employee requesting sick leave shall notify the on-duty shift commander of the fact and the reason as far in advance as possible but in no case later than (45) forty-five minutes prior to the beginning of a scheduled shift. Sometimes, the notification can even be made the evening prior to the scheduled duty day. This allows time for the supervisor or duty officer to make arrangements for coverage. Upon the employee's request, vacation leave may be used as sick leave after sick leave is exhausted.

Failure to notify the supervisor (45) forty-five minutes or more prior to the beginning of a scheduled shift may result in the employee not being granted sick leave or being paid for any absences; the employee will also be subject to disciplinary action up to and including termination.

SECTION 26.2 - ACCRUAL

Sick leave credit, for those on a 24/48 schedule, shall be accrued at the rate of 6.5 hours per pay cycle (*two weeks*) for bargaining unit members, exclusive of overtime, unpaid leave of absence or disciplinary suspension. The maximum amount of time permitted to accumulate is 2162 hours.

Sick leave credit, for those working a 40 hour schedule, shall be accrued at the rate of 4.6 hours per pay cycle (*two weeks*) for bargaining unit members, exclusive of overtime, unpaid leave of absence or disciplinary suspension. The maximum amount of time permitted to accumulate is 1640 hours.

Conversion : An employee's hours will be multiplied by 0.76 percent when an employee moves from 24/48 assignment to forty (40) hour assignment. An employee's hours will be multiplied by 1.32 percent when moving from forty (40) hour assignment to 24/48 assignment. Any employee that has accumulated the maximum hours will remain at maximum and not have a conversion formula applied.

SECTION 26.3 - GRANT OF SICK LEAVE

Sick leave may be granted to the employee upon request for the following reasons:

- 1 - Illness or injury of the employee or injury or illness of his or her immediate family where the employee's presence is reasonably necessary.
- 2 - Exposure of employee or a member of his or her immediate family to a contagious disease which would have the potential of jeopardizing the health of the employee or the health of others.
- 3 - Employee childbirth and/or related medical conditions.
- 4- Any other medical condition qualifying for the Family Medical Leave Act.

Nothing in this section shall be construed as to require the Chief or designee to approve the use of sick leave by an employee.

Should the Chief or designee determine, based on just cause, that an employee has not used sick leave properly, payment may be denied, and the employee may be disciplined.

Employees who do not report for work due to sickness and who have exhausted their sick leave days, are subject to disciplinary action for being absent without approved leave. The Chief or designee is authorized to approve leave without pay.

SECTION 26.4 - IMMEDIATE FAMILY

Immediate family, for purposes of the Article, shall be defined as: 1) SPOUSE, 2) PARENT, 3) CHILD, 4) STEPCHILD, and 5) ANY other person living in the employee's household.

SECTION 26.5 - DOCUMENTATION

An employee absent on sick leave for more than one (1) day for 24/48 employees and more than two (2) days for a day-time employee, or an employee that has been notified by the Chief or his designee that the employee is suspected of abuse of sick leave, shall submit documentation from a physician substantiating the reason for the leave. The Chief or his designee also has authority to inform the employee that any future use of sick leave will require employee to furnish documentation for any use of future sick leave. Failure to submit documentation as required may result in leave without pay and a deduction in the subsequent payroll period; an employee who refuses to submit documentation may be disciplined, up to and including termination. The doctor's documentation should be forwarded to the Chief or his designee. A Return-to-Duty form requiring a physician signature may be required at the discretion of the Chief or his designee.

SECTION 26.6 - SICK LEAVE PAID

Upon separation for any reason other than retirement, no sick leave payout will occur. Upon retirement from Employer service the bargaining unit member will be paid one-half ($\frac{1}{2}$) of the accumulated hours not to exceed a maximum of four hundred (400) net hours. Upon separation for any reason other than retirement, no sick leave payout will occur.

For purposes of this section, retirement means that an employee has completed twelve (12) years of credited service with the Employer or is eligible to receive disability pension benefits from the Ohio Police and Fire Pension Fund immediately following separation from employment with the Clearcreek Fire District.

Should an employee pass away while in active employment, the surviving spouse or others, as spelled out in Section 2113.04 of the Ohio Revised Code, will be eligible to receive sick leave payment for which the decedent would otherwise have qualified. Such payment shall be based on the rate of pay of the employee at the time of death.

SECTION 26.7 – SICK LEAVE SELL BACK

Employees may sell back up to, forty (40) hours for 40 hour employees and forty-eight (48) hours for 24/48 hour employees, of accrued (non-transferred) sick leave in a calendar year.

ARTICLE 27

OCCUPATIONAL INJURY LEAVE

SECTION 27.1 - ELIGIBLE FOR INJURY LEAVE

An employee who suffers a service-connected injury or illness incurred in the course of and arising out of employment with the Employer shall be eligible for injury leave upon the eighth (8th) day of lost time. Injury leave for seven (7) calendar days or fewer days of lost time will be for medical claims only pursuant to the rules and regulations of the Bureau of Workers' Compensation; the employee may utilize sick or other approved leave during this time. Injury leave shall be available upon the eighth (8th) day for ninety (90) calendar days from the date of injury and any leave used shall be re-credited to the employee's leave balance. After ninety (90) calendar days, the employee may utilize sick time or other approved leave of absence to supplement Workers' Compensation benefits.

SECTION 27.2 - EXECUTION OF AGREEMENT

When an employee applies for injury leave with pay, he must execute an agreement assigning to the Employer any such pay from Workers' Compensation during the period of the paid leave and all necessary forms to process to appropriate claims with the Ohio Bureau of Workers' Compensation. The Employer will issue a Check to the employee each pay period equivalent to the employee's base wage for a pay period. Any payment from Workers' Compensation for a covered claim during the above ninety (90) calendar day period shall be paid over to the Employer. When an employee and the Employer disagree concerning an injury or illness, the employee may utilize sick or other approved leave. Should the Industrial Commission rule favorably to the employee, the Employer shall re-credit the leave used and the Employer shall be reimbursed with Workers' Compensation disability payment.

SECTION 27.3 - REVIEW THE EMPLOYEE'S PHYSICAL AND MENTAL STATUS

The Chief has the right to review the employee's physical and mental status each thirty (30) days of absence in order to determine the member's ability to return to work. In the event of a difference of opinion as to the employee's mental or physical status between the employee's physician and the Employer's physician, the issue shall be submitted to an Industrial Commission Specialist whose decision shall be final and binding on both parties. The services of the third physician shall be paid by the Employer.

SECTION 27.4 - TIME LENGTH

The ninety (90) calendar day injury leave is available for each distinct, separate injury or illness. Recurrence of the same injury/illness shall be charged to the original ninety (90) calendar days.

SECTION 27.5 - INFECTIOUS DISEASE EXPOSURE

In the event an employee has been exposed to a toxic substance or to an infectious disease in the course or scope of employment, and is sent to the emergency department for testing,

treatment, and or preventive measures; Worker's Compensation subsequently determines that there was no injury sustained, shall have the insurance deductible up to \$150.00 paid by the Employer.

SECTION 27.6 - TRANSITIONAL WORK

Employees assigned to "transitional work" relating to an on duty injury or illness shall be assigned to a forty (40) hour workweek.

The transitional work policy is available to any career employee who sustains a work-related injury, occupational disease or illness that is likely to result in lost time from the job. Each transitional work assignment will be treated independently of others. The transitional work policy does not replace the existing occupational injury leave policy, but is meant to be used in conjunction with it to allow a safe transition back to full duty tasks. The transitional work program and the occupational injury leave policy are available for each distinct, separate injury or illness for a maximum total of ninety (90) calendar days. Recurrence of the same injury/illness shall be charged to the original ninety (90) calendar days. The transitional work program period will begin with the date of release to limited or restricted work established by the physician of record and will end upon the removal of the restrictions or at the end of the ninety (90) day period, whichever occurs first. The injured worker must return to his regular full duty assignment or another targeted job by the end of the transitional work assignment. If the injured worker is unable to do so, he will be entitled to whatever benefits are provided under Ohio workers' compensation. Employees must also meet all of the following criteria:

1. The employee must have had a work related injury, accident, illness or a reoccurrence/exacerbation of a pre-existing work related condition;
2. Has been released by the physician of record to participate in a transitional work program.
3. Has the potential of returning to his original job, or another targeted job that may be identified and performing the essential job functions after recovery.

Transitional work is a temporary accommodation. Our goal is to return all employees if possible to their original employment positions within a reasonable timeframe of the program.

ARTICLE 28

VACATIONS

SECTION 28.1 - VACATION ACCRUAL RATES

Upon reaching one-year full-time service, the employee is eligible for eight (80) hours for forty (40) hour work week employees, one hundred six (106) hours for fifty-three (53) hour work week employees and one hundred twenty (120) hours for 24/48 shift employees. **Conversion:** In the event that an employee's schedule changes, the employee's hours will be converted using a ratio that corresponds to the relationship between the different vacation accrual rates listed below. After an employee reaches one-year full-time service, vacation time will be accrued on January 1 thereafter.

Vacation accrual rates (<i>in hours</i>):	<u>40 Hr.</u>	<u>24/48</u>
A. After 1 year	80	120 (5 shifts)
B. After 5 years	120	168 (7 shifts)
C. After 10 years	160	216 (9 shifts)
D. After 20 years	200	264 (11 shifts)

SECTION 28.2 - VACATION REQUESTS

Vacation can be requested at any time throughout the year up to one (1) year in advance. At the time of request, bargaining unit members will identify the period of time they will be unavailable for the purpose of overtime. Vacation will be granted in increments of four (4) hours. Employees can bump other employees vacation based on seniority up to one hundred twenty (120) days prior to the requested day.

SECTION 28.3 - VACATION CARRY OVER

An employee may carry accumulated vacation leave of a maximum seventy two (72) hours or forty (40) hours to the next year based on their work schedule assignment. Any unused vacation time will be paid to the employee upon termination of employment, except, however, unused vacation time will not be paid to an employee who is separated from employment because of a disciplinary discharge or who resigns in lieu of receiving a disciplinary discharge.

ARTICLE 29

BEREAVEMENT LEAVE

SECTION 29.1 - PAY FOR BEREAVEMENT LEAVE

Bereavement leave is paid leave taken by an employee due to the death of another individual as defined below. The time is usually taken by an employee to grieve the loss of a close family member, prepare for, and attend a funeral, and/or attend to any other post-death matters. Proof of death and relationship of the deceased may be requested. Currently, there are no federal laws that require employers to provide employees either paid or unpaid leave.

SECTION 29.2 – IMMEDIATE FAMILY

Bereavement leave of one (1) shift for 24/48 employee and three (3) days for a forty (40) hour employee shall be granted for immediate family which is defined as:

1) SPOUSE, 2) PARENT, 3) PARENT-IN-LAW, 4) STEP-PARENT, 5) GUARDIAN, 6) CHILD, 7) STEP-CHILD, 8) BROTHER, 9) SISTER, 10) HALF BROTHER, 11) HALF SISTER, 12) BROTHER-IN-LAW, 13) SISTER-IN-LAW, 14) SPOUSE'S SIBLINGS, 15) SIBLING'S SPOUSES, 16) GRANDPARENT, 17) GRANDPARENT-IN-LAW. Other persons living in the employee's household shall be considered as immediate family.

SECTION 29.3 - EXTENDED FAMILY

Bereavement leave of eight (8) hours shall be granted for extended family which is defined as: 1) AUNT, 2) UNCLE, 3) AUNT-IN-LAW, and 4) UNCLE-IN- LAW, 5) COUSIN.

SECTION 29.4 - EXTENDED LEAVE

Upon approval by the Chief or designee, bereavement leave in excess of the required amount may be charged to the employee's accrued sick leave or vacation leave balance.

ARTICLE 30 HOLIDAY PAY

SECTION 30.1 - HOLIDAY PAY

Employees assigned to a 24/48 work schedule shall receive ten (10) hours of holiday pay whether that employee works the holiday or has the holiday off. Employees shall receive eight (8) hours of holiday pay whether that employee works the holiday or has the holiday off, if they are assigned to a forty (40) hour work week. Administrative positions shall receive holiday pay on the days observed by the Township.

In addition, the employee will receive pay at time and a half for working the holiday. Only hours actually worked will be considered "hours worked" for overtime purposes. Any employee working overtime (time scheduled outside of his or her normal 24/48 shift, not to include built in) on the Holiday, will be compensated at a rate of double time for the overtime hours that are worked on the Holiday.

Holiday hours will start at the beginning of the shift of the actual day of the holiday and conclude at the end of the shift. Holiday pay will be evenly distributed across 26 pay cycles throughout the calendar year.

Holidays:

- 1) NEW YEARS DAY, 2) DR. MARTIN LUTHER KING, JR. DAY, 3) PRESIDENT'S DAY, 4) MEMORIAL DAY, 5) INDEPENDENCE DAY, 6) LABOR DAY, 7) SEPTEMBER 11th, 8) VETERANS DAY, 9) THANKSGIVING DAY, 10) CHRISTMAS DAY.

ARTICLE 31

JURY DUTY

SECTION 31.1 - JURY DUTY

In the event that you are requested to serve on jury duty, you must inform the Chief or designee at once. If you have to miss work as a result of serving on jury duty, the Chief or designee will assist you with rearranging your work schedule, if possible, and in completing your time sheet. The Employer will compensate you at your regular hourly rate of pay if you are required to miss work for jury duty. You will be expected to reimburse the Employer for any jury duty payments you receive from the court for days on which you are paid by the Employer.

Employees must submit to the Chief or designee a letter from the Clerk of Court stating the dates served and amount paid for this service.

Bargaining unit members are expected to return for the remainder of their scheduled tour of duty; they will receive regular pay for time worked, but will not be entitled to overtime pay. No time is deducted from accrued benefits.

If time off would create a special hardship for the Fire District, the Chief or designee will assist the employee in providing the court with the information necessary to request a release from jury duty.

ARTICLE 32

MEDICAL AND LIFE INSURANCE

SECTION 32.1 - HOSPITAL, MEDICAL, DENTAL, VISION, PRESCRIPTION DRUG CARD AND LIFE INSURANCE

The Township shall provide hospital, medical, dental, vision, prescription drug card, and life insurance as specifically described in the current plan documents.

SECTION 32.2 - TOWNSHIP AUTHORITY TO CHANGE INSURANCE CARRIER

The Township shall continue to have the authority to change insurance carriers at any time, or to institute a full or quasi self-insured plan, provided that the goal of such change is to reduce costs while maintaining substantially similar benefit levels. The Township shall immediately notify the Union prior to any change in carrier or benefits and will meet with representatives of the bargaining unit to discuss such changes. In the event that the parties disagree with the proposed changes, the parties agree to submit the issue to the Township Trustees for final determination.

SECTION 32.3 – COST TO TOWNSHIP

The Township shall pay eighty-five percent (85%) of the cost of the premiums for hospital, medical, dental, vision, prescription drug card, and life insurance for each employee and dependents in the bargaining unit.

For every year of this agreement, the Township will contribute seventy (70) percent of the deductible of the healthcare plan into each employees Health Savings Account in the first complete pay period of the calendar year.

The insurance committee will continue to meet each year prior to renewal to make recommendations to the Trustees prior to a decision being reached on health insurance coverage for the following year.

SECTION 32.4 - SERVICE CONNECTED DEATH OR DISABILITY

Should an employee suffer a service-connected death or permanent disability arising from employment, the employee, beneficiary, or next of kin shall receive benefits in accordance with Ohio law.

ARTICLE 33

OFFICER-IN-CHARGE

SECTION 33.1 – OFFICER-IN-CHARGE (OIC) PAY

An employee who operates a position or rank above that which he normally holds (i.e. lieutenant or captain), will be paid at the rate of a first step employee for that position or rank, in accordance with Appendix A, while so acting. An employee operating as an OIC on overtime or a holiday, shall be compensated per section 21.1 and 30.1.

ARTICLE 34

UNIFORMS AND P. P. E.

SECTION 34.1 - UNIFORMS AND PERSONAL PROTECTIVE EQUIPMENT

All career Fire District personnel will be furnished uniforms and personal protective equipment (*PPE*) as identified in the Clearcreek Fire District General Operating Guidelines. Uniforms and equipment will be replaced on an as needed basis.

ARTICLE 35

EDUCATION INCENTIVE

SECTION 35.1 - DEGREE BONUS

In the first pay period of December of each year, qualified employees that have completed their orientation period will receive the following benefit. This payment can be applied to the employees HSA account:

- | | | |
|----|--------------------|---------------------|
| A. | Associate's degree | \$600.00 annually |
| B. | Bachelor's Degree | \$800.00 annually |
| C. | Master's Degree | \$1,000.00 annually |

ARTICLE 36

TRAINING

SECTION 36.1 - NON-DEPARTMENTAL TRAININGS

Employees may attend non-departmental trainings during working hours with the prior approval of the Chief. Off-duty employees who are granted permission to attend these trainings, shall be reimbursed as identified in the Clearcreek Township Employee Handbook for reasonable expenses incurred while attending outside trainings, seminars, etc., including, for example meals, lodging, tuition and expenses associated with travel.

SECTION 36.2 - DEPARTMENTAL TRAINING

The Clearcreek Fire District will provide training throughout the year to keep all necessary Fire and EMS certifications current. The education and trainings will be conducted during regularly scheduled hours on duty. It is the responsibility of each bargaining unit member to ensure that they are present for enough trainings throughout the year to keep all certifications current.

ARTICLE 37

SHIFT/STATION REASSIGNMENT

SECTION 37.1 - SHIFT/STATION REASSIGNMENT

All bargaining unit members shall be given thirty (30) days notice prior to shift reassignment and seven (7) days notice prior to a permanent station reassignment under normal working conditions. A shorter notice period may be given if the township's needs so dictate.

SECTION 37.2 – VACATION DAYS UPON REASSIGNMENT OF SHIFT

When a bargaining unit employee has been reassigned either permanently or temporarily to another shift, the employees scheduled vacation day(s) off shall be honored by allowing the employee to move the day(s) into the shift before or after the employees scheduled day off.

ARTICLE 38 SUPERVISOR RESPONSIBILITIES

SECTION 38.1 - SUPERVISOR RESPONSIBILITIES

Lieutenants and Captains (officers) are responsible for supervising firefighters and other personnel assigned to them. They are further responsible for assisting in the management of the fire department.

An officer shall not withhold discipline or corrective action because it is against a fellow Union member. The officers will cooperate fully with the Township and Fire District to help formulate policy and carry out policies.

ARTICLE 39

TERMS OF AGREEMENT

SECTION 39.1 - DURATION

This Agreement shall be in effect from the period 12:01 A.M., January 1, 2021 until 11:59 P.M., December 31, 2023, and shall continue thereafter for successive periods of twelve (12) months, unless either party to this Agreement on or before sixty (60) days prior to the expiration of such period, notifies the other party in writing of its intention to terminate this Agreement.

SECTION 39.2 - MODIFICATION OF AGREEMENT

Management and the Union hereby agree that circumstances may arise requiring a modification and/or amendment of the terms of this agreement. Amendments and/or modifications of this agreement shall be captioned as a "Memorandum of Understanding," and be in writing, dated and signed by the authorized Employer designee and the Union following Clearcreek Township Board of Trustee approval.

When such agreements are reached in writing between the Employer and the Union, then these agreements shall become part of this agreement and subject to the provisions of this agreement.

SECTION 39.3 - COPIES OF AGREEMENT

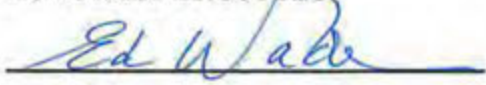
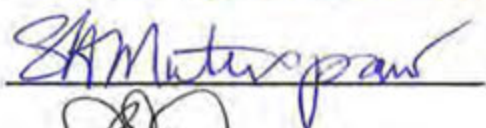
The Employer agrees to supply two copies of this Agreement to the Union.

SECTION 39.4 - SUCCESSOR AGREEMENT

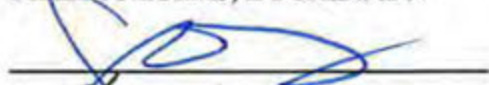
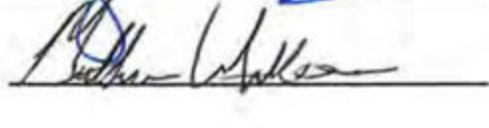
This agreement shall be binding upon the successors and assigns of the parties hereto.

IN WITNESS WHEREOF, the Employer and the Union have duly executed this Agreement, this _____ day of December 2020.

**THE BOARD OF CLEARCREEK
TOWNSHIP TRUSTEES**


**CLEARCREEK PROFESSIONAL
FIREFIGHTERS, LOCAL #4207**

Appendix A

Fire District Salary Schedule 2021 - 2023

Rank	2021 3%		2022 3%		2023 3%	
	Hourly	Salary	Hourly	Salary	Hourly	Salary
Captain	\$33.20	\$101,715.75	\$34.19	\$104,767.22	\$35.22	\$107,910.24
Probationary	\$31.69	\$97,095.35	\$32.64	\$100,008.21	\$33.62	\$103,008.46
Lieutenant	\$30.18	\$92,474.96	\$31.09	\$95,249.21	\$32.02	\$98,106.69
Probationary	\$28.82	\$88,289.81	\$29.68	\$90,938.50	\$30.57	\$93,666.66
Firefighter/PM	\$27.44	\$84,071.19	\$28.26	\$86,593.33	\$29.11	\$89,191.13
STEP 4	\$25.39	\$77,810.21	\$26.16	\$80,144.52	\$26.94	\$82,548.85
STEP 3	\$24.53	\$75,165.20	\$25.27	\$77,420.16	\$26.03	\$79,742.76
STEP 2	\$23.70	\$72,620.62	\$24.41	\$74,799.24	\$25.14	\$77,043.22
STEP 1	\$22.90	\$70,176.51	\$23.59	\$72,281.81	\$24.30	\$74,450.26
Probationary	\$21.81	\$66,828.39	\$22.47	\$68,833.24	\$23.14	\$70,898.24
Firefighter/EMT	\$19.47	\$59,663.42	\$20.06	\$61,453.32	\$20.66	\$63,296.92

*Annual salary is calculated by multiplying the employees' hourly rate by 2704 (hours worked), 100 (holiday pay), and 260 (Article 20.1).

